

		Francisco County Superior Court Case No. TC24-1404). Plaintiff did not file an opposition, and therefore defendants' unopposed motion is granted. This action is stayed pending resolution of <i>Ascensao v. Harbor Distributing, L.L.C.</i>, Los Angeles County Superior Court Case No. 24STCV14911, and <i>Quinteros v. Harbor Distributing, L.L.C.</i>, San Francisco County Superior Court Case No. TC24-1404. Defendants to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed May 29, 2026 (ROA 49). Based thereon, and in light of the court's concurrently-issued order staying this action, the June 11, 2026 status conference is continued to <u>October 8, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
4	Barcenas v. Bambuza OC Ventures LLC, et al. 2024-01415928	Off calendar.
5	Barcenas v. Bambuza OC Ventures LLC 2024-01433210	Off calendar.
6	Burrows v. Drybar Products, LLC 2025-01473104	Off calendar.
7	Guerra v. Pulmuone U.S.A., Inc., et al. 2022-01245975	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a class action and PAGA settlement. For the following reasons, plaintiff's motion is denied without prejudice. Plaintiff filed this motion for preliminary approval on April 18, 2025 seeking approval of a \$237,500 class and PAGA action settlement. ROA 170. In the court's August 21, 2025 order (ROA 185), the court stated that in addition to a \$5,000 enhancement award, plaintiff sought an additional \$5,000 payment from the gross settlement amount to compensate plaintiff for a "general release of claims against the Released Parties in connection with her alleged employment with Defendants and Plaintiff's waiver of California Civil Code § 1542," and that the court was unlikely to approve a settlement that provided for payment for plaintiff's general release from the gross settlement amount. The court further noted that the provision was inconsistent with paragraphs 1.23, 1.29 and 4.4 of the settlement agreement (and section 3(1) of the notice).

	8/21/25 Order (ROA 185). The court continued the hearing on the motion to February 5, 2026 to enable the parties to address the issues identified in the court’s order. Between the August 21, 2025 and February 5, 2026 hearings, the parties reduced the gross settlement amount from \$237,500 to \$232,500. In its February 5, 2026 order, the court stated: “Since the time of the last hearing on this motion (August 21, 2025), the parties have reduced the gross settlement amount from \$237,500 to \$232,500. It appears plaintiff agreed to reduce the gross settlement amount to obtain an additional \$5,000 for herself. See Supp. Brief (ROA 194) at ¶ 4 (at 3). If that is the case, why is it fair and reasonable to the class for the gross settlement amount to be reduced by \$5,000 so that plaintiff—who also seeks a \$5,000 enhancement award from the gross settlement amount—can be paid an additional \$5,000 to apparently compensate her for a general release of claims? In addition, can plaintiff be an adequate class representative if she agreed to reduce the gross settlement amount to obtain additional compensation for herself? More generally, if the parties intend to change the gross settlement amount, the parties must provide the anticipated high, low and average individual class and PAGA payments based on the new gross settlement amount, and must update any other information previously provided that is affected by the gross settlement amount.” 2/5/26 Order (ROA 209). The day the court issued the February 5, 2026 order, plaintiff’s counsel filed a declaration (ROA 207) in which counsel asserts that the “restructuring” of the settlement “did not change the economic reality of the Settlement” and “the reduced Gross Settlement Amount does not reduce the Class’s recovery and does not render Plaintiff an inadequate class representative.” Third Supp. Kwak Decl. (ROA 207) ¶¶ 10-11. (Plaintiff has not filed any additional documents addressing the February 5, 2026 order.) Plaintiff’s counsel’s statements appear inconsistent with the estimated high, low and average individual class payments stated in the Third Supplemental Kwak Declaration, which reflect that the estimated payments decreased when the parties decreased the gross settlement amount. Third Supp. Kwak Decl. (ROA 207) ¶ 13 (“The high, low, and average range of a Class Members’ potential recovery is \$1,896.49 (vs. \$2,053.82), \$7.68 (vs. \$8.32), and \$238.02 (vs. \$257.77), respectively”). Plaintiff’s counsel states this is because the number of estimated workweeks increased (Third Supp. Kwak Decl. ¶ 12), but provides no explanation why, if that is true, the same number of workweeks would not result in higher individual class payments for a \$237,500 settlement. In addition, counsel’s statements do not address the fundamental issues identified in the court’s February 5, 2026 order, i.e., (i) did plaintiff agree to reduce the gross settlement amount to obtain \$5,000 in compensation for herself (and do so while also seeking a second \$5,000 payment from the remaining gross settlement amount), and (ii) if she did, how can plaintiff be an adequate class
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		representative? <i>See, e.g., J.P. Morgan & Co., Inc. v. Superior Court</i> (2003) 113 Cal.App.4th 195, 212 (“[t]he adequacy inquiry . . . serves to uncover conflicts of interest between named parties and the class they seek to represent”). The parties’ decision to renegotiate a material term of the settlement (i.e., the gross settlement amount) during the pendency of the motion requires denial of the motion. The denial is without prejudice to enable the parties to seek approval of the settlement in the form in which it now exists, including submitting valuation analysis of the settlement amount, the average, high and low individual class and PAGA payments, and any other information necessary for the court to determine whether the settlement is fair, reasonable and adequate. In addition, should plaintiff continue to seek an enhancement award, plaintiff should explain why an enhancement award would be appropriate in light of plaintiff’s apparent decision to reduce the gross settlement amount to obtain more money for herself. A status conference is scheduled for <u>September 24, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days in advance. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
8	Hannett, et al. v. Serendipity Hearing, Inc., et al. 2021-01216930	<u>Plaintiffs’ Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs’ motion for final approval of a \$325,000 class action and PAGA settlement. The court grants the motion as follows: \$5,000.00 for enhancement award to each plaintiff (\$10,000.00 total); \$97,500.00 for attorneys’ fees; \$18,477.54 for litigation costs; \$8,950.00 for settlement administration costs; and \$30,000.00 total PAGA penalties (\$22,500.00 to the LWDA). The objection is overruled, as it states no grounds for objection. Lee Decl. (ROA 233) Ex. C. The final accounting hearing is scheduled for <u>March 4, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller’s Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.